

26PR00025 Estate of James R Kotaska

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-15

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of James R Kotaska

Case Number

26PR00025

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/15/2026 - 09:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Denial of the proffered testamentary instruments to Probate

James R. Kotaska died on October 16, 2025. Before Mr. Kotaska died, he filled out a document that is a "fill-in-the-blank" form that was styled "Last Will and Testament of _____," whereon Decedent purportedly handwrote his name. The document was signed by the Decedent on October 13, 2025 (three days before his death), and was accompanied by two purported witness signatures, attesting to having witnessed the Decedent sign the will in both their presences on October 13,

2025.

The October 13th document suffers from several defects. First, the document began with a warning, apparently acknowledging the known problems with fill-in-the-blank wills: "This Last Will form is a draft form only. You must retype the will or use the fillable PDF or Word doc included in the download." (Pet, at attachmnt. 3f(2), dgtl. p. 8.) Second, the will is not self-proving, because it does not meet the requirements of Probate Code section 6110, 8220(b), and 8221(b)(1), in that the affidavit of attestation was not executed under the penalty of perjury, nor is supported by an Affidavit of Subscribing Witness. Third, several of the clauses in the will are left blank, or partially filled out, creating confusion as to what the Decedent intended for the disposition of his estate.

Further complicating this Court's ability to admit the October 13th document to probate, are several pages of handwritten notes that were allegedly sent in an envelope to the petitioner, accompanying the October 13th document. These pages include 1) an undated note to the petitioner, 2) an undated Document titled "first draft" that appears to be an attempt to create a holographic will, and 3) an untitled and undated list of thoughts and desires of the Decedent that could or could not be an addendum to the undated "first draft" document. These three documents contain dispositions of the Decedent's estate that conflict with dispositions in the October 13th document, and contain admissions that the Decedent's medical condition was affecting his "brain and other functions."

As was stated previously when all these issues were raised in the Probate Notes:

When a will is typewritten but contains handwritten interlineations, the Court is faced with determining whether the handwritten interlineations were meant by the testator to rely upon the typewritten portions of the document to form a single testamentary device, or whether the testator meant the handwritten interlineations to constitute a codicil to the typewritten provisions of the document to form two testamentary devices. (Estate of Sola (1990) 225 Cal.App.3d 241, 246-47.) If the handwritten portions of the document are meant to constitute a holographic codicil, the statutory provisions of 6111 must be met, and the Court must determine if those handwritten interlineations revoke the typewritten words within the document. (Ibid. See also Estate of Nielson (1980) 105 Cal.App.3d 796, 804.)

"Where the handwriting in itself lacks testamentary intent and substance and has meaning only in relationship to the typewritten words it relates to, there is no complete testamentary document that can be deemed a holographic will." (Estate of Sola (1990) 225 Cal.App.3d 241, 247.) Thus, if the document was not executed in conformance with Probate Code section 6110 to be self-proving, the Court must receive sufficient evidence to satisfy the clear and convincing standard in Probate Code section 6110(c)(2), in order to admit the will as is, without discarding either the typewritten or handwritten portions.

In this case, the court should discard the entire will, because the typewritten portions of the will are wholly reliant on the handwritten portions, and vice versa. Hybrid, fill-in-the-blank wills are disfavored in this state, except for the statutory will that has been provided by our legislature.

A "hybrid" will (i.e. fill-in-the-blank will or typewritten will with handwritten interlineations) is not admissible to probate unless the handwritten portions of the will dispose of the estate on their own, without the need for reference to the typewritten portion of the will, other than mere organization issues. (In re Goldsworthy's Estate (1942) 54 Cal.App.2d 666, 672 [as to a fill-in-the-blank will]. See also Estate of Sola (1990) 225 Cal.App.3d 241 and Estate of Phiher (1984) 152 Cal.App.3d 813 [as to handwritten interlineations on a formerly executed typewritten will].) California law only allows fill-in-the-blank wills in two instances: 1) The statutory form is used (Prob. Code, §§6220 et seq.); or 2) the handwritten portion of the will meets the standard of a holographic will without the need for reference to the printed portions (Estate of Black (1982) 30 Cal.3d 880, 888)].

For a hybrid will to qualify as a valid holographic will, the handwritten portions must independently express the testator's dispositive intent. If the handwritten entries are merely names, dates, or property descriptions that have no testamentary meaning without the printed language, courts must find the printed matter was incorporated, and deny admission of the will to probate. (Estate of Phiher (1984) 152 Cal.App.3d 813, 817 ["so long as the printed words were "not relevant to [the holograph's] substance or essential to its validity as a will or codicil."]; Estate of Sola (1990) 225 Cal.App.3d 241, 247

["Where the handwriting in itself lacks testamentary intent and substance and has meaning only in relationship to the typewritten words it relates to, there is no complete testamentary document that can be deemed a holographic will."].) However, if the handwritten portions contain complete dispositive provisions that can stand on their own, with printed matter serving only as procedural or organizational framework, the will may be admissible. (Estate of Black (1982) 30 Cal.3d 880, 885.)

Because the will submitted in this case not only contains handwritten portions that are wholly reliant on the typewritten text, but also internally create confusion, the October 13th document should be found not to constitute a will. Because the accompanying handwritten documents were not dated by the Decedent, those documents should also be found not to constitute a will.

As a result of those two findings, the Court should deny admission of those documents to Probate, and order that the Decedent died intestate.

Appointment of Richard J. Jennette as Administrator

Decedent appears to have died leaving two heirs: William Kotaska and Paul C. Gruber. Both persons have declined to serve as administrator, nominated Mr. Jennette as Administrator of the estate, and waived bond. It is recommended the Court appoint Mr. Jennette as administrator, and waive bond.

Judges

Judge Denise M. Hippach

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